

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Charlotte N. Sweeney

Civil Action No. 1:21-cv-02444-CNS-SKC

ERIC RAY,

Plaintiff,

v.

AUTO-OWNERS INSURANCE COMPANY,

Defendant.

JURY VERDICT FORM

WE THE JURY, in the above-captioned action, render our verdict in response to the following interrogatories:

SECTION I – BREACH OF CONTRACT

1. Has Plaintiff Ray proven by a preponderance of the evidence his claim for breach of contract against Defendant Auto-Owners? (Yes or No)

ANSWER: NO

If your answer to Question No. 1 is "No," proceed to Section II and do not answer the remaining questions in this Section I.

If your answer to Question No. 1 is "Yes," proceed to Question No. 2.

2. Has Defendant Auto-Owners proven its affirmative defense that Plaintiff Ray breached the policy? (Yes or No)

ANSWER: _____

If your answer to Question No. 2 is "Yes," proceed to Section II and do not answer the remaining questions in this Section I.

If your answer to Question No. 2 is "No," proceed to Question No. 3.

3. State your answers to the following questions related to Plaintiff Ray's damages that were caused by the motor vehicle accident:

a. What is the total amount of Plaintiff Ray's damages, if any, for noneconomic losses or injuries? (Noneconomic losses or injuries are those losses or injuries described in numbered paragraph one of Instruction No. 23. You should answer "0" if you determine there were none.)

ANSWER: \$ _____

b. What is the total amount of Plaintiff Ray's damages, if any, for economic losses? (Economic losses are those losses described in numbered paragraph two of Instruction No. 23. You should answer "0" if you determine there were none.)

ANSWER: \$ _____

Proceed to Section II, below.

SECTION II – UNREASONABLE DELAY OR DENIAL OF BENEFITS OWED

4. Did Defendant Auto-Owners unreasonably delay or deny payment of covered insurance benefits for economic damages to Plaintiff Ray? (Yes or No)

ANSWER: NO

If your answer to Question No. 4 is "No," proceed to sign the Certification on the next page and do not answer the remaining question in this Section II.

If your answer to Question No. 4 is "Yes," proceed to Question No. 5.

5. Has Defendant Auto-Owners proven its affirmative defense that Plaintiff Ray breached the policy? (Yes or No)

ANSWER: _____

If your answer to Question No. 5 is "Yes," proceed to sign the Certification on the next page and do not answer the remaining question in this Section II.

If your answer to Question No. 5 is "No," proceed to Question No. 6.

6. What is the total dollar amount of covered benefits, if any, that Plaintiff Ray has proven by a preponderance of the evidence were delayed or denied without a reasonable basis?

ANSWER: \$_____

Proceed to sign the Certification on the next page.

CERTIFICATION

If your answers to the foregoing questions constitute your true verdict in this case, sign and date the following section. Once you have done so, inform the Court by note that you are ready to return to the courtroom for announcement of your verdict.

By our signatures and our answers to these questions, we hereby certify that the answers on this form represent the unanimous verdict of the jury.

JUROR NAMES REDACTED

